

HOUSE No. 5341

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, April 9, 2026.

The committee on Consumer Protection and Professional Licensure, to whom was referred the petition (accompanied by bill, House, No. 4719) of Bradley H. Jones, Jr., for legislation to create HVAC construction supervisor licensing, reports recommending that the accompanying bill (House, No. 5341) ought to pass.

For the committee,

TACKEY CHAN.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing HVAC construction supervisor licensing.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 94 of chapter 143 of the General Laws, as appearing in the 2024
2 Official Edition, is hereby amended by striking out subsection (i) and inserting in place thereof
3 the following:-

4 (i) To issue licenses to individuals engaged as construction supervisors. Fees for such
5 licenses shall be collected and retained by the commonwealth; provided, however, that in
6 addition to any licenses issued under this subsection, the board may issue a construction
7 supervisor license for heating, ventilation and air conditioning systems with less than a 10-ton
8 capacity limited to the direct supervision of persons engaged in the installation, repair, and
9 maintenance of such systems.

10 SECTION 2. Said section 94 of said chapter 143, as so appearing, is hereby further
11 amended by striking out subsection (n), and inserting in place thereof the following:-

12 (n) To establish a continuing education advisory council to assist and make
13 recommendations to the board relative to the formulation, promulgation and administration of

14 requirements for the continuing education of individuals licensed as construction supervisors.
15 The council shall consist of: the commissioner of the division of occupational licensure, or his
16 designee; 2 licensed construction supervisors who shall also be members of the Home Builders
17 Association of Massachusetts; 2 licensed construction supervisors who shall also be members of
18 the Air Conditioning Association of New England; 1 licensed construction supervisor who shall
19 also be a member of the eastern Massachusetts chapter of the National Association of the
20 Remodeling Industry; and 3 members to be appointed by the commissioner, 2 of whom shall be
21 certified building inspectors and 1 of whom shall be an instructor in residential construction
22 technology at a public or private teaching institution. The commissioner shall be chairperson of
23 the council which shall meet regularly and may establish its own rules for the conduct of its
24 business. The members of the council shall not be compensated for their services but shall be
25 reimbursed for travel and other expenses necessary for the performance of their duties. The
26 board may provide technical and clerical assistance to the council.